



**IN THE HIGH COURT OF PUNJAB AND HARYANA  
AT CHANDIGARH**

**CRM-M-32432-2026 (O&M)  
DECIDED ON: 09.06.2026**

**GOBIND SINGH @ GORA @ GOGA**

**.....PETITIONER(S)**

**VERSUS**

**STATE OF PUNJAB**

**...RESPONDENT(S)**

**CORAM: HON'BLE MR. JUSTICE SANDEEP MOUDGIL**

Present: Mr. Raj Kumar Sharma, Advocate for the petitioner(s)  
Mr. Yatin Bunker, AAG, Punjab.

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**SANDEEP MOUDGIL, J (ORAL)**

This Petition under Section 528 of The Bharatiya Nagarik Suraksha Sanhita, 2023 (earlier section 482 Cr.P.C.) has been filed for setting aside the impugned order dated 5.5.2026 (Annexure P-3) passed by Addl. Sessions Judge, Moga vide which the bail order of petitioner has been cancelled and bail bonds and surety bonds of the petitioner has also been cancelled and forfeited to the State and he has been summoned through non-bailable warrant of arrest in case FIR No.2.9 dated 2.3.2021 (Annexure P-1) under sections 399, 402 IPC of 1860, (sections 310 (4), 310 (5) as per BNS, 2023, registered at P.S. Baghapurana, Moga. District

Learned counsel for the petitioner submits the petitioner could not

appear in Court on 05.05.2026 due to mis-communication and noting of wrong date therefore, his bail bonds and surety bonds has been forfeited through non-bailable warrants.

He submits that the petitioner did not have any intention to avoid attendance in the Court proceedings, as otherwise he was appearing regularly on each and every date before the Court. He undertakes that the petitioner will surrender before the trial Court and shall join the trial proceedings without any delay or default in future.

Notice of motion.

On the asking of the Court, learned State Counsel accepts notice on behalf of the respondent-State, who is not averse to the undertaking given by the petitioner that he will surrender before the trial Court.

Considering the submissions made by learned counsel and also in appreciation of the fact that it will only speed up the proceedings before the Trial Court which is one of the essence as enshrined under Article 21 of the Constitution of India, impugned order dated 05.05.2026 (P-3) is set aside and the petitioner is directed to surrender before the trial Court within a period of one week from today and apply for bail.

In case, such an application for bail is moved by the petitioner before the learned trial Court, the same shall be considered on the same date and decided in accordance with law.

However, it is made clear that in case the petitioner does not abide by the aforesaid undertaking, the respondent/State shall be at liberty to move an appropriate application for revival of the instant petition.

The aforesaid order/concession to the petitioner shall be subject to

payment of Rs.10,000/- as compensatory penalty to be deposited in Chandi Kusht Ashram Society, (account No.1445265900) (IFSC Code KKBK0004211), Kotak Mahindra Bank, Sector 46-C Chandigarh and a receipt of the same be produced before the Trial Court and only in that eventuality, application of the petitioner for seeking bail be considered and decided on the same day in accordance with law.

The amount so deposited by the petitioner shall not be construed as cost for this order but compensatory penalty for stalling the court proceedings by evading himself from trial for a long time.

The instant petition is disposed of in the aforesaid terms.

09.06.2026  
anuradha

(SANDEEP MOUDGIL)  
JUDGE

Whether speaking/reasoned  
Whether reportable

:Yes/No  
:Yes/No